

Calendar Line 3

Case Name: *Lonnie Wong v. Ro Health, LLC, et al.*

Case No.: 24CV452239

This is a putative class and representative action under the Private Attorneys General Act (“PAGA”). Plaintiff Lonnie Wong alleges that defendant Ro Health LLC (“Defendant” or “Ro”) committed various wage and hour violations.

Before the Court is Plaintiffs’ Lonnie Wong and Miriam Wilson’s (collectively, “Plaintiffs”) petition for coordination and application for an immediate stay, which is opposed by Defendant and plaintiff Vianna Monarque. For reasons discussed below, the Court DENIES the motion.

V. BACKGROUND

According to the allegations of the operative first amended complaint (“FAC”), Defendant failed to: pay all wages owed, including minimum and overtime wages; provide compliant meal periods or compensation in lieu thereof; provide rest periods or compensation in lieu thereof; provide complete and accurate wage statements; timely pay wages; pay sick wages; pay wages due upon termination; and reimburse for necessary business expenses. Plaintiff Wong also asserted a claim for discrimination under the Fair Employment and Housing Act and a claim for wrongful termination in violation of public policy.

VI. REQUEST FOR JUDICIAL NOTICE

Defendant Ro request judicial notice of the following items:

- (1) The July 27, 2025 order denying Ford’s petition for coordination in *In re Ford Motor Co.*, JCCP No. 4827: Exhibit A;
- (2) The December 1, 2023 minute order in *Southern California Discount Tire Wage and Hour Cases*, JCCP 5296 denying Barajas’ petition for coordination: Exhibit B;
- (3) The October 23, 2025 order in *Jose Francisco Hernandez v. GMRI, Inc., et al.*, JCCP No. 5402 denying plaintiffs’ petition for coordination: Exhibit C; and
- (4) The October 9, 2025 order in *Jorge Rivera v. National Street and Shipbuilding Company, et al.*, JCCP No. 5393 denying Carroll’s petition for coordination: Exhibit D.

Evidence Code section 452, subdivision (d), permits judicial notice of records of any court of this state or any court of record of the United States or of any state of the United States. (Code Civ. Proc., § 452, subd. (d).) Exhibits A-D are court records, therefore they are

proper items of judicial notice. Thus, the Court takes judicial notice of the existence of the documents and the legal effect of the court orders but does not take notice of the truth of any disputed contents. (*Oh v. Teachers Ins. & Annuity Assn. of America* (2020) 53 Cal.App.5th 71, 79-81.) Ro's request for judicial notice is GRANTED.

VII. EVIDENTIARY OBJECTIONS

Plaintiffs submit evidentiary objections to the declaration of Maria Halwadjian and objections to Defendant's request for judicial notice.

A. Halwadjian Declaration

Objection 1 is OVERRULED and the request to strike is DENIED.

B. Request For Judicial Notice

Objections 1-4 are OVERRULED and the request to strike is DENIED.

VIII. PETITION FOR COORDINATION

Plaintiffs move to coordinate the following cases:

- (1) *Wong v. Ro Health, LLC (Wong)* Case No. 24CV452239, filed in Santa Clara County Superior Court on November 20, 2024;
- (2) *Wilson v. Ro Health, LLC (Wilson)*, Case No. STK-CV-UOE-202400016340, filed in San Joaquin County Superior Court on November 21, 2024;
- (3) *Ralh v. Ro Health LLC (Ralh)*, Case No. 25CV022017, filed in Sacramento County Superior Court on September 16, 2025; and
- (4) *Ralh v. Ro Health LLC (Ralh PAGA Action)*, Case No. 25CV028110, filed in Sacramento County Superior Court on November 20, 2025

A. Legal Standard

California Rules of Court, rule 3.400, subdivision (a), defines a "complex case" as "an action that requires exceptional judicial management to avoid placing unnecessary burdens on the court or the litigants and to expedite the case, keep costs reasonable, and promote effective decision making by the court, the parties, and counsel."

In deciding whether an action is a complex case under (a), the court must consider, among other things, whether the action is likely to involve:

- (1) Numerous pretrial motions raising difficult or novel legal issues that will be time-consuming to resolve;
- (2) Management of a large number of witnesses or a substantial amount of documentary evidence;
- (3) Management of a large number of separately represented parties;
- (4) Coordination with related actions pending in one or more courts in other counties, states, or countries, or in a federal court; or
- (5) Substantial postjudgment judicial supervision.

(California Rules of Court, rule 3.400, subdivision (b).) Title 3, Division 4, Chapter 7 of the California Rules of Court (i.e., rules 3.501 through 3.550) provides for the coordination of complex actions.

Code of Civil Procedure section 404, provides, “[w]hen civil actions sharing a common question of fact or law are pending in different courts, a petition for coordination may be submitted to the Chairperson of the Judicial Council, by the presiding judge of any such court, or by any party to one of the actions after obtaining permission from the presiding judge, or by all of the parties plaintiff or defendant in any such action. A petition for coordination, or a motion for permission to submit a petition, shall be supported by a declaration stating facts showing that the actions are complex, as defined by the Judicial Council and that the actions meet the standards specified in Section 404.1. On receipt of a petition for coordination, the Chairperson of the Judicial Council may assign a judge to determine whether the actions are complex, and if so, whether coordination of the actions is appropriate, or the Chairperson of the Judicial Council may authorize the presiding judge of a court to assign the matter to judicial officers of the court to make the determination in the same manner as assignments are made in other civil cases.” (Code of Civ. Proc., § 404.)

“Coordination of civil actions sharing a common question of fact or law is appropriate if one judge hearing all of the actions for all purposes in a selected site or sites will promote the ends of justice taking into account” the following factors: “whether the common question of fact or law is predominating and significant to the litigation; the convenience of parties, witnesses, and counsel; the relative development of the actions and the work product of counsel; the efficient utilization of judicial facilities and manpower; the calendar of the courts; the disadvantages of duplicative and inconsistent rulings, orders, or judgments; and, the likelihood of settlement of the actions without further litigation should coordination be denied.” (Code Civ. Proc., § 404.1 (“Section 404.1”); see also California Rules of Court, rule 3.521 [setting forth the requirements for a petition for coordination].) The trial court exercises its discretion in weighing and balancing these factors to determine whether coordination best serves the ends of justice in a particular case. (*Pesses v. Superior Court (Pacific Southwest Airlines)* (1980) 107 Cal.App.3d 117, 125-126.)

B. Discussion

Plaintiffs move for coordination of *Wong*, *Wilson*, and both *Ralh* matters.

The *Wong* action asserts eleven causes of action based on Labor Code violations and a twelfth cause of action seeking PAGA penalties. The *Wilson* action asserts six causes of action for Labor Code violations and a seventh cause of action seeking PAGA penalties. The *Ralh* class action asserts ten causes of action for Labor Code violations and violations of the Business & Professions Code while the *Ralh* PAGA action asserts a single cause of action for PAGA penalties.

On July 11, 2025, the parties in the *Wong* action agreed to mediate the *Wong* and *Wilson* actions and they filed a stipulation to stay. On October 6, 2025, the Court ordered the matter stayed pending the mediation which was scheduled for April 14, 2026. The Court prohibited Defendant from initiating contact with any putative class members during the stay for purposes of resolving the claims in the action, except for class members who independently asserted a claim against Defendant. (October 6, 2025 Order, ¶ 9.) On September 16, 2025,

Plaintiff Ralh provided written notice to the LWDA and Defendants and on April 13, 2026, an amended written notice was provided to the LWDA and Defendants.

On March 31, 2026, a settlement was reached in the *Ralh* actions after the parties participated in mediation with Doug Leach. On April 9, 2026, the parties filed a notice of settlement in Sacramento County Superior Court. The motion for preliminary approval of class action and PAGA settlement is set for October 9, 2026. The mediation for the *Wong/Wilson* action was cancelled on April 6, 2026.

Plaintiffs argue all the actions should be considered complex and coordination will “promote the ends of justice” under Code of Civil Procedure section 404.1 because the actions share common questions of law and fact; it will be more convenient for the parties, witnesses, and counsel; the relative development of the actions favor coordination; coordination will promote judicial economy; and coordination will ensure a fair settlement is reached. (Petition, pp. 10:13-16:7.)

There are clearly common questions of fact and law as the actions arise from the same purported wage and hour policies. Moreover, the cases involve overlapping class and PAGA theories which are all asserted against Defendant. Thus, this factor supports coordination. Next, Plaintiffs argue that the convenience of the parties, witnesses, and counsel favor coordination. Here, it would be more efficient for the cases to have centralized discovery and motion practice. With regard to the development of the actions, the *Wong* and *Wilson* matters were filed first while the *Ralh* matters were filed about a year after. However, the *Ralh* matters have reached a settlement and the motion for preliminary approval is set for hearing in October 2026 in Sacramento County Superior Court.

Plaintiffs raise arguments regarding the fairness of the *Ralh* settlement, however, that issue is not proper for this Court to consider as the *Ralh* actions were filed in Sacramento County Superior Court, nor is it proper for the Court to attempt to resolve on a petition for coordination. Moreover, in this Court’s view, the disputes regarding the *Ralh* settlement weigh against coordination of the actions.

As to the utilization of judicial facilities and manpower, here, the *Wong* and *Wilson* actions are at a different stage than the *Ralh* actions. As the Court explained above, it cannot resolve the disputes as to the fairness of the *Ralh* settlement. Thus, in the absence of a determination that the settlement is improper or cannot move forward, coordination would not be a more efficient use of judicial resources. Thus, based on the information before the Court at this time, these factors weigh against coordination.

Plaintiffs argue there is a risk of inconsistent rulings. Defendant argues there is no risk of inconsistent ruling because once the *Ralh* settlement is approved, it will extinguish all class and PAGA claims. However, the settlement has not been approved so the Court cannot conclude at this time that there is no risk of duplicative or inconsistent rulings. Accordingly, it appears this factor supports coordination.

Plaintiffs argue coordination would enable a fair settlement of all the actions. Defendant argues this does not support coordination because the *Ralh* actions have already settled. As noted above, the disputes regarding the *Ralh* settlement would be properly resolved by the Sacramento County Superior Court. Moreover, if the motion for preliminary approval is

denied, that does not mean that coordination of the actions would increase the likelihood of settlement. Thus, it appears this factor weighs against coordination of the actions.

Based on the foregoing and on balance of the aforementioned factors, the Court finds that the section 404.1 analysis weighs against coordination of the actions. Accordingly, Plaintiff's petition is DENIED.

IX. CONCLUSION

Plaintiffs' petition for coordination is DENIED.

The Court will prepare the order.

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Calendar Line 4

Case Name: *Maria Castro v. The Villages Golf and Country Club*

Case No.: 25CV469636

This is a putative class and representative action under the Private Attorneys General Act (“PAGA”) action. Plaintiff Maria Cristina Castro alleges defendant The Villages Golf and Country Club committed various wage and hour violations.

Before the Court is Defendant’s demurrer to Plaintiff’s first amended complaint (“FAC”), which is opposed. As discussed below, the Court OVERRULES the demurrer.

X. BACKGROUND

According to the allegations of the operative FAC, Plaintiff was employed as a non-exempt employee, with duties including preparing and cooking food, and customer service. (FAC, ¶ 3.) Defendant failed to, among other things: pay wages including overtime and minimum wages; provide meal and rest periods or compensation in lieu thereof; provide complete and accurate wage statements; and timely pay final wages.

Based on the foregoing, Plaintiff initiated this action on June 30, 2025, with the filing of the Complaint and on July 7, 2025, she filed the operative FAC, which asserts the following causes of action: (1) failure to pay overtime wages; (2) failure to pay minimum wages; (3) failure to provide meal periods; (4) failure to provide rest periods; (5) waiting time penalties; (6) wage statement violations; (7) failure to timely pay wages; (8) failure to indemnify; (9) violation of Labor Code § 227.3; (10) unfair competition; and (11) civil penalties under PAGA.

XI. REQUEST FOR JUDICIAL NOTICE

In support of its motion, Defendant requests judicial notice of the following items:

- (1) Plaintiff’s pre-lawsuit notification to the Labor & Workforce Development Agency (“LWDA”) and Defendant, filed on January 5, 2025: Exhibit A;
- (2) Defendant’s Notice of Cure to the LWDA, filed on February 7, 2025: Exhibit B
- (3) The LWDA’s response to Defendant’s Notice of Cure, sent on February 13, 2025: Exhibit C
- (4) Plaintiff’s second pre-lawsuit notification to the LWDA and Defendant, filed on May 2, 2025: Exhibit D;
- (5) Defendant’s response to Plaintiff’s second notification, filed June 3, 2025: Exhibit E; and
- (6) Plaintiff’s FAC.